

Syllabus.

PIERSON ET AL. v. RAY ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT.

No. 79. Argued January 11, 1967.—Decided April 11, 1967.*

Petitioners,† members of a group of white and Negro clergymen on a "prayer pilgrimage" to promote racial integration, attempted to use a segregated interstate bus terminal waiting room in Jackson, Mississippi, in 1961. They were arrested by respondent policemen and charged with conduct breaching the peace in violation of § 2087.5 of the Mississippi Code which this Court, in 1965, held unconstitutional in *Thomas v. Mississippi*, 380 U. S. 524, as applied to similar facts. Petitioners waived a jury trial and were convicted by respondent municipal police justice. On appeal one petitioner was accorded a trial *de novo* and, following a directed verdict in his favor, the cases against the other petitioners were dropped. Petitioners then brought this action in the District Court for damages (1) under 42 U. S. C. § 1983, which makes liable "every person" who under color of law deprives another person of his civil rights, and (2) at common law for false arrest and imprisonment. The evidence showed that the ministers expected to be arrested on entering a segregated area. Though the witnesses agreed that petitioners entered the waiting room peacefully, petitioners testified that there was no crowd at the terminal, whereas the police testified that a threatening crowd followed petitioners. The jury found for respondents. On appeal the Court of Appeals held that (1) respondent police justice had immunity for his judicial acts under both § 1983 and the state common law and (2) the policemen had immunity under the state common law of false arrest if they had probable cause to believe § 2087.5 valid since they were not required to predict what laws are constitutional, but that, by virtue of *Monroe v. Pape*, 365 U. S. 167, they had no such immunity under § 1983 where the state statute was subsequently declared invalid. The court remanded the case against the officers for a new trial under § 1983 because of prejudicial cross-examination of petitioners, but ruled that they

*Together with No. 94, *Ray et al. v. Pierson et al.*, also on certiorari to the same court.

†See n. 3, *infra*.